

“For venue to be proper in a county other than the county in which a defendant resides, the action must fall within a statutory exception.” (*Fontaine, supra*, 175 Cal.App.4th at 837.)

Defendants contend that venue in Orange County is improper because both Defendants reside in Los Angeles County, have resided in Los Angeles County during all relevant times, and their principal place of business is in Los Angeles County. (Decl. of Mann, ¶¶2-3; Decl. of Trinidad, ¶¶ 2-3). Defendants also contend that the legal services at issue in the Complaint were performed primarily in Los Angeles County, and that the retainer agreements were executed in Defendants’ Los Angeles office. (Decl. of Mann, ¶¶ 4-5, Decl. of Trinidad, ¶¶4-5).

Plaintiffs contend that one of the three lawsuits that Defendants litigated, which is the subject of Plaintiffs’ malpractice and other claims, was venued in Orange County and litigated in Orange County (*Usman Chowdhry v. Franz Gerald Andre Tissera, Phase9Motorsports, Inc., et al.*, Orange County Superior Court Case No. 30-2022-01258301-CU-FR-CJC).

Plaintiffs also contend that the retainer agreement was signed in Orange County. Plaintiff Franz Tissera submitted a declaration wherein he declared the following:

“In or around May 2022, I, together with my co-plaintiffs Frederick Tissera and Angela Chisholm, retained Defendant Jeff A. Mann to represent us, along with Phase9Motorsports, Inc., in *Usman Chowdhry v. Franz Gerald Andre Tissera, Phase9Motorsports, Inc., et al.*, Orange County Superior Court Case No. 30-2022 01258301-CU-FR-CJC (the “Usman action”).” (Decl. of Tissera, ¶ 4). “I recall receiving a copy of the fee agreement from Mr. Mann and taking it with me to my residence in Anaheim, Orange County, California, so that it could be signed by me and my siblings, Frederick Tissera and Angela Chisholm.” (Decl. of Tissera, ¶ 5). “On or about May 19, 2022, I signed my portion of the fee agreement in Anaheim, Orange County, California. Frederick Tissera and Angela Chisholm also signed their respective portions of the agreement in Anaheim, Orange County, California, at or around the same time.” (Decl. of Tissera, ¶ 6). “After the agreement had been signed by all three of us, I personally returned the signed copy to Mr. Mann at his law office in Los Angeles.” (Decl. of Tissera, ¶ 7). “I do not presently recall whether Mr. Mann had already signed the fee agreement before he provided it to me or whether he signed it after I returned the executed copy to his office. I do recall that the client signatures of myself, Frederick Tissera, and Angela Chisholm were placed on the agreement in Orange County before I personally returned the signed agreement to Mr. Mann.” (Decl. of Tissera, ¶ 8).

Plaintiffs cite to the portion of Code Civ. Proc. § 395, subd. (a) which provides that if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary.

According to Plaintiffs, Defendants cannot establish that Orange County is an improper venue because the contracts were executed in Orange County and